

### I. Request

1. The Commission for Constitutional Affairs, Rights, Freedoms, and Guarantees submitted to the National Commission for the Protection of Whistleblowers, proceeding with the first amendment to Law No. 93/2021, of December 20.
2. The CNPD issues this opinion within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of paragraph 1 of article 57, paragraph b) of paragraph 3 of article 58, and paragraph 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, paragraph 2 of article 4, and paragraph s) of paragraph 1 of article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the domestic legal order.

### II. Analysis

3. As stated in the approved Law No. 93/2021, of December 20, its scope is limited to violations of acts or omissions contrary to European Union law and the crimes provided for in paragraph 1 of article 1 of Law No. 5/2002, of January 11, which establishes measures to combat organized crime, excluding a set of other violations of national legislation that do not arise from European sources.
4. Furthermore, the mechanisms that ensure that the report cannot be the basis for liability lawsuits against public participation (SLAPP) are highlighted.
5. Regarding whistleblowers, three proposals are presented: The first aims to ensure the expansion of the scope of application of the general whistleblower protection regime by establishing a broad concept of reporting that encompasses any violation of European Union law, violations of national norms of a criminal and administrative nature; The second aims to also expand the concept of whistleblower to include individuals who are not professionally linked to the reported entity; The third aims to protect the whistleblower against retaliation in the judicial context.
6. It is noted that, by Deliberation of June 9, 2021, the CNPD issued Opinion No. 2021/76 on Draft Law No. 91/XIV/2nd (GOV), which transposes Directive (EU) 2019/1937, concerning the protection of individuals who report violations of Union law, and that, by Deliberation of March 23, 2023, the CNPD issued opinions on environmental matters, amending Law No. 93/2021, of December 20, which can be consulted on the CNPD website.
7. Article 2 of the Draft Law provides for the introduction of amendments and additions to articles 2, 5, 24, and 27 of Law No. 93/2021, of December 20.
8. These amendments and additions materialize the three proposals referenced in Point 5 and do not contain matters on which the CNPD should express an opinion.

### III. Decision

9. Thus, regarding Draft Law No. 380/XVI/1st (PAN) under analysis, the CNPD has no recommendations to present.

Approved at the meeting of January 14, 2025

Paula Meira Lourenço (President)

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